

The core of Defendant's opposition is the Declaration of Jeff Hughes, to which the City objects. Most objections relate to foundation and hearsay. Although not all objections would be sustained, at least one objection to each and every paragraph objected to is valid. The Court therefore sustains objections to paragraphs 3(d), 5-17, and 18, as well as Figures 1-4. The Declaration contains conclusions of law, hearsay, and foundationless photographs. Although it is possible that Mr. Hughes could provide certain relevant testimony, this declaration fails entirely to support Defendants' arguments. In addition to the issues with the Declaration, it does not answer the *permitting* questions raised by the City. Defendants never actually rebut that their work was unpermitted. Without permits and inspections, it cannot be deemed compliant. (See Concord Municipal Code § 15.10.010; Cal. Code Regs., tit. 24, § 105.1 (California Building Code); Declaration of Thomas Davis.)

Merits

Defendants argue that because the City did not acknowledge their cross-complaint, the City failed to establish reasonably probability that it will prevail on the merits. In doing so, Defendants directly challenge counsel's candor. The Court finds no violations of the duty of candor. Defendants' cross-complaint does not appear relevant to the issues of this Preliminary Injunction. Indeed, Defendants themselves never explain how the cross-complaint is relevant. Its mere existence does not lessen the alleged harms. For the Court to understand why the cross-complaint—which appears at heart to be a general challenge on fee-collection by the City—affects this Preliminary Injunction, the Defendants would have to have drawn a connection, which they never do.

The City has made a *prima facie* case of code violations, substandard building conditions, irreparable harm to tenants. Defendants never directly challenge the City's arguments that the alleged violations are not and were not violations. Through the Declaration of Jeff Hughes, they have passing reference to the alleged conditions not being dangerous, but otherwise their *sole* arguments relate to timeliness, the *existence* of their cross-complaint (but never its merits) and their purported remediation. Unsupported statements regarding the conditions of the premises do not rebut the City's arguments. Defendants never even mention the illegal dumping violation.

Conclusion

At the end of the day, the City's contentions are, essentially, un rebutted. The Preliminary Injunction will be **granted**.

10. 9:00 AM CASE NUMBER: C25-02637
CASE NAME: ROBIN FERNANDEZ VS. VEG SAN RAMON, LLC,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES L. ARRASMITH, ESQ.
FILED BY:
TENTATIVE RULING:

The Motion is **granted**. Relieved counsel for Plaintiff is ordered to forward all required materials to Plaintiff or her next attorney.